In 2007, two Public Interest Litigations were filed in the Supreme Court of India, asking for the disbandment of Salwa Judum.

One of the petitioners was Nandini Sundar, who in 1997 published a landmark social history of the region, and has since regularly returned to do fieldwork there. After many hearings spread over several years, the court issued an order in July 2011, calling for the disbandment of Salwa Judum and the filing of cases against those guilty of arson, murder and rape. Justice B. Sudershan Reddy and Justice Surinder Singh Nijjar observed that the Chhattisgarh government appointed thousands of 'barely literate tribal youth as SPOs', and then asked them 'to undertake tasks that only members of the official and formal police ought to be undertaking'.

The creation of Salwa Judum, the apex court pointed out, resulted in 'a miasmic environment of dehumanization of youngsters of the deprived sections of the population, in which guns are given to them rather than books, to stand as guards, for the rapine, plunder and loot in our forests'. By arming poor and largely illiterate adivasis, the Chhattisgarh government had installed 'a regime of gross violation of human rights in a manner, and by adopting the same modes, as [have] done Maoist/Naxalite extremists'.

The Supreme Court held that the creation of special police officers violated 'the promise of equality before the law' assured by Article 14 of the Constitution. It treated unequals as equals, asking untrained adivasis to conduct tasks meant for trained policemen. It also violated 'the dignity of life' promised by Article 21, since these adivasi young men were wilfully exposed to the risk of death.

The court also expressed its disappointment with the cavalier response of the government to questions and queries. Thus the state and central governments repeatedly insisted 'that the only option for the state was to rule with an iron fist, [and] establish a social order in which every person is to be treated as suspect … and a Maoist'. The judges were 'aghast at the blindness to constitutional limitations of the state of Chhattisgarh, and some of its advocates, in claiming that anyone who questions the inhumanity that is rampant in many parts of that state ought necessarily to be treated as